

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TECHNOLOGY ART CORP., JUNIOR
TRINIDAD and JUSTYN TRINIDAD,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT,
LIEUTENANT "JOHN" PASQUET and
police officers whose names are
yet unknown,

Defendants.

SUMMONS

INDEX NO. :

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: February 23, 2021
Plaintiffs' address: 1550 Inwood Ave.
Bronx, NY

ELLIOT H. FULD
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$500,000.00 with interest from November 11, 2020 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TECHNOLOGY ART CORP., JUNIOR
TRINIDAD, and JUSTYN TRINIDAD,

Plaintiffs,

-against-

THE CITY OF NEW YORK, LIEUTENANT
"JOHN" PASQUET, and police officers whose
names are yet unknown,

Defendant.

VERIFIED COMPLAINT

INDEX NO.:

NYC Claim ~~##~~:2020PD029783 &
2020PI029782

TECHNOLOGY ART CORP., JUNIOR TRINIDAD, and JUSTYN TRINIDAD, by
their attorney, Elliot H. Fuld, complains of the Defendants and alleges, upon information
and belief as follows:

1. JUNIOR TRINIDAD was, at all times of the incident described in this complaint, a resident of the City and State of New York, residing at 509 West 174th Street, County of New York.
2. JUSTYN TRINIDAD was, at all times of the incident described in this complaint, a resident of the City and State of New York, residing at 509 West 174th Street, County of New York.
3. TECHNOLOGY ART CORP. was and is a domestic corporation with its principle office at 1550 Inwood Avenue, County of Bronx, City and State of New York.
4. TECHNOLOGY ART CORP. is owned by JUNIOR TRINIDAD.
5. LIEUTENANT "JOHN" PASQUET, and police officers whose names are yet unknown and police officers whose names are yet unknown were and at all times herein and upon

information and belief, are police officers with the New York City Police Department with regards to the incidents described herein.

6. THE CITY OF NEW YORK, LIEUTENANT "JOHN" PASQUET, and police officers whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

7. That at all times stated herein, THE CITY OF NEW YORK, LIEUTENANT "JOHN" PASQUET, and police officers whose names are yet unknown, as employees of the New York City Police Department, were acting as agents, servants and/or employees of the City of New York.

8. THE CITY OF NEW YORK, at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AND AS FOR A FIRST CAUSE OF ACTION

9. On or about November 11, 2020, LIEUTENANT "JOHN" PASQUET, and police officers whose names are yet unknown forcibly and unlawfully seized and detained Plaintiff JUSTYN TRINIDAD in premises 1550 Inwood Avenue, Bronx, New York.

10. The Defendants had approached that location without a warrant or and justification and requested permission to enter and search the premises.

11. JUSTYN TRINIDAD, who was caring for the premises in his father's absence, denied the Defendants entry.
12. That denial to Defendants has resulted in Defendants commencing and continuing a course of harassing and illegal conduct against Plaintiffs that continues to date.
13. Plaintiff JUSTYN TRINIDAD was then brutally handcuffed, terrorized and taken the 44th Precinct for a period of over (4) hours without an explanation as to the reason for his treatment.
14. The Defendants kept JUSTYN TRINIDAD handcuffed in a locked room for more than four (4) hours.
15. While the Defendants detained JUSTYN TRINIDAD in the 44th Precinct, police officers ransacked and trashed the Defendant's TECHNOLOGY ART CORP'S business premises causing damage to property therein.
16. Plaintiff JUSTYN TRINIDAD was released from custody on November 11, 2020 without being told the reason for his detention but was told that he would have to appear in Court at a later date to answer criminal charges.
17. To date, JUSTYN TRINIDAD has not received any notification requiring him to appear in Court but remains anxious of the pending prosecution.

18. The foregoing harassing conduct by the Defendants against Plaintiffs has continued.
19. Defendants have continued to approach Plaintiffs, enter Plaintiff's premises without permission, a warrant or justification and subject Plaintiffs to abuse and punishment meted out by Defendants.
20. To justify their illegal conduct, Defendants have served Plaintiffs with a Notice stated to be pursuant the "Administrative Code §14-181" -a section which deals with the arrest of child "caregivers".
21. To justify their illegal conduct, the Defendants allege that their intrusions and illegal conduct are justified by the New York City Office of Nightlife at the Mayor's Office of Media and Entertainment which classified Plaintiff's premises at 1550 Inwood Avenue, Bronx, New York as a "Hotspot".
22. To justify their illegal conduct, Defendants claim that community complaints caused Defendants to violate Plaintiffs' rights when Defendants' knew that those alleged complaints did not involve Plaintiffs.
23. On or about December 1, 2020, Plaintiffs, by counsel, served upon the Comptroller of the City of New York, Notice of Claim as required by the General Municipal Law.
24. Claim numbers as indicated in the above caption were assigned on December 11.2020.
25. To date, no General Municipal Law 50-h examination was held or has been requested.

26. That more than thirty (30) days have elapsed since the service of the Notice of Claim and the adjustment or payment thereof has been neglected or refused.

27. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the stop, search, destruction of property and detention of November 11, 2020.

28. As a result of Defendants' actions, Plaintiffs demand judgment against the Defendants and was damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

AND AS FOR A SECOND CAUSE OF ACTION

29. Plaintiffs repeat all the allegations contained in paragraphs "1" through "28" inclusive as though more fully set forth herein.

30. As a result of Defendants' actions, Plaintiff JUSTYN TRINIDAD was repeatedly falsely imprisoned.

31. That at the times of Plaintiff's imprisonments, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

32. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiff's release.

33. That as a result of Defendants' action, Plaintiffs was compelled to, inter alia, suffer embarrassment, humiliation, fear and paranoia.

34. In view of the foregoing, Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AND AS FOR A THIRD CAUSE OF ACTION

35. Plaintiffs repeat all the allegations contained in paragraphs "1" through "34" inclusive as though more fully set forth herein.

36. The Defendants have stated to JUSTYN TRINIDAD that he will be prosecuted in Court and that threat of prosecution is malicious and without basis.

37. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

38. As a result of the foregoing, the Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

Wherefore, Plaintiff demands of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$500,000; and
- b. On the Second Cause of Action, the sum of \$500,000; and
- c. On the Third Cause of Action, the sum of \$500,000; and
- d. Punitive Damages in the sum of \$1,000,000.

Dated: February 23, 2021



Law Offices of Elliot H. Fuld
Attorneys for Plaintiff
930 Grand Concourse, Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, being duly sworn, deposes and says:

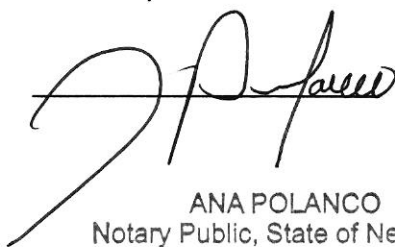
I am the attorney for the Plaintiffs herein, and I state that the statements contained in that Complaint are true or are, upon information and belief, accurate and that said information was obtained after conversations with the Plaintiff. I make this verification because Plaintiffs are unable to verify due to the COVID-19 pandemic.

Dated: February 23, 2021



ELLIOT H. FULD

Duly sworn to this 23rd day of
February 2021

A handwritten signature in black ink, appearing to read 'Ana Polanco', is written over a horizontal line.

ANA POLANCO
Notary Public, State of New York
Reg. No. 01PO6133973
Qualified in Bronx County
Commission Expires Sept. 19, 2021